JacksonLewis

Jackson Lewis P.C.
666 Third Avenue
New York NY 10017-4030
(212) 545-4057 Direct
(212) 972-3213 Fax
Joseph.Anci@jacksonlewis.com

July 17, 2026

VIA NYSCEF
Hon. Jennifer G. Schecter, J.S.C.
New York State Supreme Court
New York County Commercial Division
60 Centre Street, Room 228
New York, New York 10007

Re: Dr. Peter Daszak, Ph.D. v. EcoHealth Alliance Inc., et al.
Index No. 164611/2025

Dear Justice Schecter,

Our office represents the Defendants in the above-referenced matter. We write pursuant to Rule 27 of Your Honor's Part 54 Rules and CPLR § 3214(b) to seek a stay of discovery pending Defendants' motion to dismiss (Mot. Seq. 1). For the reasons set forth herein, there is good cause to stay discovery in the instant action and, as such, Defendants' motion to stay discovery should be granted. We have informed Plaintiff about this letter motion and he has requested until Wednesday, July 22, 2026, to submit a response.

Procedural History

Plaintiff initiated the instant action on November 3, 2025, asserting three causes of action against all Defendants: (1) Age discrimination in violation of the New York State Human Rights Law ("NYSHRL"), (2) Age discrimination in violation of the New York City Human Rights Law ("NYCHRL"), and (3) Breach of Contract based on Defendant EcoHealth's employee handbook. On April 2, 2026, Defendants filed a motion to dismiss pursuant to CPLR § 3211(a)(7) and CPLR § 3211(a)(11) (hereinafter, "Defendants' Motion"). More specifically, Defendants argued that Plaintiff's age-discrimination claims fail as a matter of law because the Complaint alleges no facts connecting Plaintiff's termination to his age beyond conclusory assertions. Defendants further contend that Plaintiff's breach-of-contract claim is legally deficient because neither EcoHealth's employee handbook nor its bylaws created enforceable contractual rights to continued employment or severance benefits. Finally, Defendants argued that all eighteen individual defendants must be dismissed because they are not proper parties under New York Not-for-Profit Corporation Law § 720-a. Defendants' Motion was marked fully submitted on June 29, 2026. Oral argument is presently scheduled for July 28, 2026.

Argument

The Court has broad discretion to stay discovery during the pendency of a motion to dismiss. Indeed, Rule 11(g) of the Commercial Division Rules provide that "[t]he court will determine, upon application of counsel, whether discovery will be stayed, pursuant to CPLR § 3214(b), pending the determination of any dispositive motion." 22 NYCRR § 202.70(g), R. 11; *Chan v. Zoullas*, 34 Misc. 3d 1210(A), 2012 N.Y. Slip Op. 50027(U), at *3 (Sup. Ct. N.Y. County, Jan. 10, 2012) ("discovery during the pendency of a dispositive motion, in the commercial part, is not a rule written in stone. The court has discretion to stay such discovery".) For the reasons outlined below, discovery should be stayed in the instant action pending the decision of Defendants' Motion.

A. Defendants' Motion is Dispositive and Will Eliminate the Need for Discovery

As stated above, Commercial Division Rule 11(g) allows for a stay of discovery where a pending motion may result in the complete dismissal of a plaintiff's claims, thereby eliminating the need for discovery altogether. *See, e.g.*, *Levy Grp., Inc. v. L.C. Licensing, Inc.*, 2010 N.Y. Misc. LEXIS 6816, n. 1 (N.Y. Sup. Ct. N.Y. County, Oct. 12, 2010) (granting stay of discovery pending determination of motion to dismiss); *Rappaport v. Blank*, 99 Misc. 2d 1020 (N.Y. Sup. Ct. N.Y. County 1979) *rev'd on other grounds*, 72 A.D.2d 717 (1st Dept. 1979) (discovery stay should be granted in the interest of avoiding "unwarranted resort to disclosure" where "if the motion to dismiss were granted, disclosure becomes unnecessary.").

Here, Defendants moved to dismiss Plaintiff's Complaint pursuant CPLR § 3211(a)(7) and (a)(11) and, as stated above, Defendants' motion has the potential to dismiss the Complaint in its entirety. At a minimum, the motion would eliminate all claims against the eighteen Individual Defendants, substantially narrowing the scope of the litigation and significantly reducing the burden and expense of discovery. Requiring the parties to proceed with discovery before the Court resolves these threshold legal issues would risk unnecessary expenditure of party resources a stay of discovery is intended to prevent.

Accordingly, good cause exists to stay discovery pending the Court's decision on Defendants' Motion.

B. Plaintiff Will Suffer No Prejudice from a Stay

A stay of discovery pending the Court's determination on Defendants' Motion will not, in any way, disadvantage or prejudice Plaintiff in any meaningful way. As noted above, oral argument is currently scheduled for Defendants' Motion on July 28th – only one month after the full submission of Defendants' Motion. Thus, any discovery stay would be limited. Moreover, the stay is particularly appropriate here because Defendants' Motion raises the threshold question of whether certain Defendants are immune from suit – an issue that goes directly to whether the Court can, and should, exercise jurisdiction over those Defendants at all. If those Defendants are immune,

JacksonLewis

they cannot properly be subjected to the Court's jurisdiction, and it would be inappropriate to compel them to participate in discovery before that threshold question is resolved. *See, e.g.*, *Youge Venture Capital LLC v. Xueyuan Han*, 2023 N.Y. Misc. LEXIS 43056, at *2-*3 (N.Y. Sup. Ct. N.Y. County, June 23, 2023) (staying discovery because, *inter alia*, of the "short time period involved".)

Moreover, Plaintiff served interrogatory requests on July 15th and requests for production on July 16th. Thus, Defendants' responses are currently due after the July 28th argument and, presumably, after a decision is issued on Defendants' Motion, which may eliminate the need for discovery in its entirety. Proceeding with discovery now risks requiring the parties to incur unnecessary expense before the Court determines whether any claims may proceed at all. As stated above, there is a strong likelihood that Plaintiff's Complaint will be dismissed in its entirety, or, at the very least, the claims against the individual Defendants will be dismissed, which would narrow the scope of this litigation and significantly reduce any discovery that may ultimately be required.

Under these circumstances, the balance of equities weighs decisively in favor of a temporary stay. Plaintiff will suffer little, if any, prejudice from a brief pause in discovery, while denying a stay may force Defendants to incur substantial costs and burdens that could prove entirely unnecessary if the Motion is granted. As such, the Court should grant Defendants' request to stay discovery.

We thank the Court in advance for its time and consideration.

Respectfully submitted,

JACKSON LEWIS P.C.

/s/ Joseph Anci
Joseph Anci